

File No.: EXP202304551

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant), after receiving several emails in January, February, and March 2023 from the EUROPEAN ASSOCIATION OF LAWYERS (hereinafter, the respondent), proposing his "(...) membership in the International Lawyers Network European Association of Lawyers also called AEA International Lawyers Network" for an annual fee, sent several emails indicating that "Through this email, I inform you that I have never requested information from you and that I do not authorize the use of my data, therefore I request that you unsubscribe me from your email distribution list, serving this as a means to exercise my right to deletion of my data in your records," without receiving a response.

He provides copies of the commercial emails received on February 15 and March 8, 2023, and copies of the emails requesting data deletion on January 16 and February 2, 2023.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to both AEA ABOGADOS-LAWYERS, S.L. and the EUROPEAN ASSOCIATION OF LAWYERS SECTION SPAIN, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

- The notification by electronic means sent on 12/04/2023 to AEA ABOGADOS-LAWYERS, S.L. is recorded as delivered on 12/04/23.

- The notification by electronic means to the EUROPEAN ASSOCIATION OF LAWYERS SECTION SPAIN expired on 23/04/23 as it was not accessed within ten days from its availability.

Therefore, the notification was reiterated by postal mail, which was returned by the Postal Service with the indication of "unknown."

Upon consulting the State Agency for Tax Administration, a new postal dispatch was sent to the address provided by that agency, recorded as delivered on 25/05/23.

There is no record of a response from either of the two entities in this Agency.

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THIRD: The result of the transfer procedure indicated in the previous Fact did not satisfy the claims of the claimant. Consequently, on June 8, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the complaint submitted was admitted for processing due to the expiration of the established deadline.

The entities were granted a hearing period, to present any allegations they deemed appropriate within ten working days, with the representative of the European Association of Lawyers Section Spain responding that "(...) All invitation emails to the AEA are sent with the legend below Unsubscribe. Clicking on the link leads to a page that removes the email from the mailing list. The complaint should be archived."

FOURTH: After examining the document submitted by the respondent, it was forwarded to the claimant, so that, within ten working days, they could formulate any allegations they deemed appropriate, indicating, in summary, that they had received another email similar to the previous ones, and that none of the received emails contained the link to unsubscribe.

FIFTH: After granting a hearing to the European Association of Lawyers Section Spain, a document was received in this Agency indicating that "(...) A document has been received in the electronic mailbox of the European Association of Lawyers, Section Spain, and as president and the Association lacking a digital signature, I request that you send it to the mailbox of AEA Abogados Lawyers, S.L., so that I can complete the hearing we have in the email that we indicate below. (...)"

From this Agency, the documentation was reiterated by postal mail to the European Association of Lawyers, Section Spain, being received on October 30, 2023, without any response recorded.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures.”

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring them to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on June 8, 2023, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law applicable to the controller;

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f) the personal data has been obtained in relation to the offer of information society services mentioned in Article 8, paragraph 1.

2. When the personal data has been made public and the data controller is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform the controllers who are processing the personal data of the data subject's request for deletion of any link to that personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical

purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing, or

e) for the establishment, exercise, or defense of legal claims.

V

Conclusion

In the present case, from the examination of the documentation provided, it has been established that the claimant requested the deletion of their data from the EUROPEAN ASSOCIATION OF LAWYERS, without any record of a reasoned response to that request, failing to send the required response to their request.

The aforementioned rules do not allow the request to be overlooked as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where the request does not meet the stipulated requirements, in which case the recipient of that request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with reasons indicating the causes for which the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be sent to the claimant informing them about the decision made regarding the exercise of rights request is attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge the EUROPEAN ASSOCIATION OF LAWYERS SECTION SPAIN with NIF G54080437, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the causes for which the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to the EUROPEAN ASSOCIATION OF LAWYERS SECTION SPAIN.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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